

SENATE BILL 2716

By Yager

AN ACT to amend Chapter 325 of the Private Acts of 1945; as amended by Chapter 335 of the Private Acts of 1968; Chapter 282 of the Private Acts of 1972; Chapter 23 of the Private Acts of 1973; Chapter 93 of the Private Acts of 1983; Chapter 83 of the Private Acts of 1985; Chapter 218 of the Private Acts of 1990; Chapter 11 of the Private Acts of 1991; Chapter 65 of the Private Acts of 1993; Chapter 90 of the Private Acts of 2000; Chapter 77 of the Private Acts of 2002; Chapter 136 of the Private Acts of 2002; Chapter 27 of the Private Acts of 2011; Chapter 41 of the Private Acts of 2022; and any other acts amendatory thereto, relative to the City of Lafayette.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 325 of the Private Acts of 1945, as amended by Chapter 335 of the Private Acts of 1968, Chapter 282 of the Private Acts of 1972, Chapter 23 of the Private Acts of 1973, Chapter 93 of the Private Acts of 1983, Chapter 83 of the Private Acts of 1985, Chapter 218 of the Private Acts of 1990, Chapter 11 of the Private Acts of 1991, Chapter 65 of the Private Acts of 1993, Chapter 90 of the Private Acts of 2000, Chapter 77 of the Private Acts of 2002, Chapter 136 of the Private Acts of 2002, Chapter 27 of the Private Acts of 2011, Chapter 41 of the Private Acts of 2022, and any other acts amendatory thereto, is amended by deleting the fourth paragraph in Section 3 and substituting instead:

The Mayor and six (6) Council Members shall constitute the City Council. They shall be elected for four-year terms as hereinafter provided: The election shall be held in connection with the general election in November. In the election of November 2026, three (3) Council members shall be elected for four-year terms. In the election of November 2028, the Mayor and three (3) Council members shall be elected for four-year terms. The incumbents in office as of this Act's effective date shall continue in office until the expiration of their terms and until they are elected or their successors are

elected and qualified. The newly elected Mayor and Council members enter upon the duties of their offices at 10:00 a.m. on the last Thursday of November.

SECTION 2. Chapter 325 of the Private Acts of 1945, as amended by Chapter 335 of the Private Acts of 1968, Chapter 282 of the Private Acts of 1972, Chapter 23 of the Private Acts of 1973, Chapter 93 of the Private Acts of 1983, Chapter 83 of the Private Acts of 1985, Chapter 218 of the Private Acts of 1990, Chapter 11 of the Private Acts of 1991, Chapter 65 of the Private Acts of 1993, Chapter 90 of the Private Acts of 2000, Chapter 77 of the Private Acts of 2002, Chapter 136 of the Private Acts of 2002, Chapter 27 of the Private Acts of 2011, Chapter 41 of the Private Acts of 2022, and any other acts amendatory thereto, is amended by deleting the seventh paragraph of Section 3 and substituting instead:

Each Council Member shall receive as compensation one hundred fifty dollars (\$150.00) per Council Meeting attended and seventy-five dollars (\$75.00) per Committee Meeting attended, as approved by the Mayor.

SECTION 3. Chapter 325 of the Private Acts of 1945, as amended by Chapter 83 of the Private Acts of 1985, Chapter 90 of the Private Acts of 2000, and Chapter 27 of the Private Acts of 2011, and any other acts amendatory thereto, is amended by deleting the language "superintendent of gas," in Section 8 and substituting instead "superintendent of gas, superintendent of streets, superintendent of sanitation,".

SECTION 4. Chapter 325 of the Private Acts of 1945, as amended by Chapter 335 of the Private Acts of 1968, Chapter 282 of the Private Acts of 1972, Chapter 93 of the Private Acts of 1983, Chapter 83 of the Private Acts of 1985, Chapter 218 of the Private Acts of 1990, Chapter 90 of the Private Acts of 2000, Chapter 77 of the Private Acts of 2002, Chapter 27 of the Private Acts of 2011, and any other acts amendatory thereto, is amended by adding the following after the second sentence in the eighth paragraph of Section 9:

Beginning the last Thursday in November after the election in November 2028, the mayor shall receive compensation of seventy-five thousand dollars (\$75,000) per annum payable in equal monthly installments from the general fund.

SECTION 5. Nothing in this act shall be construed as having the effect of altering the salary of any incumbent prior to the end of the term for which such public officer was elected.

SECTION 6. Nothing in this act shall be construed as having the effect of removing any incumbent from office or abridging the term of any official prior to the end of the term for which such official was elected.

SECTION 7. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Lafayette. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 8. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 7, the public welfare requiring it.